IN THE SUPREME COURT OF THE STATE OF IDAHO

Nos. 44003 & 44004

STATE OF IDAHO,
Plaintiff-Respondent,

v.

BENJAMIN J. DAHL AKA BENJAMIN JOHN DAHL,
Defendant-Appellant.

APPEAL FROM THE DISTRICT COURT OF THE THIRD JUDICIAL DISTRICT OF THE STATE OF IDAHO, IN AND FOR THE COUNTY OF CANYON
HONORABLE THOMAS J. RYAN, District Judge

BRIEF OF RESPONDENT

LAWRENCE G. WASDEN
Attorney General
PAUL R. PANTHER
Deputy Attorney General
Chief, Criminal Law Division
LORI A. FLEMING
Deputy Attorney General
Criminal Law Division
State of Idaho
P. O. Box 83720
Boise, Idaho 83720-0010
(208) 334-4534
Attorneys for Plaintiff-Respondent

ANDREA W. REYNOLDS
Deputy State Appellate Public Defender
322 E. Front St., Ste. 570
Boise, Idaho 83702
(208) 334-2712
Attorney for Defendant-Appellant

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STATEMENT OF THE CASE

Nature Of The Case

Benjamin J. Dahl appeals from the judgment entered upon his conditional guilty pleas to possession of methamphetamine with intent to deliver and possession of heroin. On appeal, Dahl argues the trial court erred in denying his motion to suppress.

Statement Of The Facts And Course Of The Proceedings

The state charged Dahl with possession of methamphetamine with intent to deliver, possession of heroin, possession of hydrocodone, and possession of oxycodone. (R., pp.19-21, 28-30.) Dahl filed a motion to suppress, arguing the evidence against him was the fruit of an unlawful entry into his home. (R., pp.33-42, 56-58.) Following a hearing on the motion, the district court made the following factual findings:

> …. Officers arrived at a residence located at 19419 Brush Creek Avenue; Caldwell, Idaho. The Officers had a felony warrant to serve upon James David, and their last contact with David was at this residence. ….
> In search of James David, the Officers arrived at Dahl's house on May 23, 2015 at 8:36 a.m. The audio recording of the encounter was entered into evidence based upon stipulation of the parties. The court's review of the recording indicates the Officers knocked on Dahl's door for several minutes before a female child answered the door, and the following occurred:
> Officer: Hi, how are you?
> Child: Good.

Officer: Hey, is, uh, James here?
Child: Who?
Officer: James. You know, James David. I was over here the other day and he was here. Is Ben here?
Child: I don't know.
Officer: Can you go look for me?

State's Response to Defendant's Motion to Suppress, Exhibit A at 2:46. The audio evidences the door closes and the Officers chat:

Officer 1: Little Kid?
Officer 2: Yeah. Too many questions.

The officers begin talking over one another, making it difficult to decipher what is being said, and then go on to discuss other things before one of the Officers again knocks on the door. When the girl opens the door, the following conversation occurs:

Officer: Hey.
Child: I think he is still sleeping
Officer: Okay, is your parents up?
[inaudible]
Officer: Okay, can you open the door for officer safety reasons?
Child: Yeah.
Officer: We just need to talk to one adult. Can you go get one of your parents for me, please?
Child: Yeah.
Officer: May I come in?
Child: Yeah.
Officer: Ok.

Id. at 4:46. According to Officer Hoeksema's testimony at the hearing, he then entered the residence with the permission of the child while his companion, Officer Hemmert, remained outside.

The audio tape reveals that Officer Hoeksema briefly spoke with who the young girl said was her brother, before observing Dahl's mother coming down the stairway. Once Dahl's mother (hereinafter, "Ms. Dahl") came downstairs the following conversation ensued:

> Officer: Good morning, Ma'am. I'm sorry to wake ya.
> Ms. Dahl: That's okay.
> Officer: Remember me, I came by here.
> Ms. Dahl: Yeah.
> Officer: Okay. So, [inaudible]…
> Ms. Dahl: Yeah, it was.
> Officer: Is, uh, [inaudible] still living here?
> Ms. Dahl: She [presumably intending to mean the woman whose name was inaudible in the Officer's question] has been staying here off and on. I don't' think she is here tonight.
> Officer: Okay, so what about James? When I was here James was here.
> Ms. Dahl: No, he doesn't come by very often.
> Officer: Okay, do you know where he might be staying?
> Ms. Dahl: I don't.
> Officer: Okay, so, I just want to throw this out here – he has a felony warrant for his arrest, okay?
> Ms. Dahl: is there?
> Officer: If he is found here in this home, then people could be arrested for felony harboring. And I know that you don't want that, but, I just want to make sure that he is not here. So if [inaudible] is not here, he was here with your son, Benjamin. Do you mind if we go up there and at least clear to make sure that he is not here?
> Ms. Dahl: Yeah. [Ms. Dahls' reply does not sound consenting when read in context. However, Ms. Dahl's tone of voice, as evidenced on

the audio, persuades this Court that Ms. Dahl was, in fact, consenting to the Officer's request.]
Officer: Okay, I appreciate that.

State's Response to Defendant's Motion to Suppress, Exhibit A at 7:24.

The audio then evidences knocking, presumably on Dahl's bedroom door, and the following conversation ensues:

Ms. Dahl: Ben, the police would like to see your room, please. […] They just want to make sure James isn't here.
Officer: Hey Ben, its [sic] Officer Hooks, sic. I'm the one who came by here initially. I just wanted to check with you. But, more importantly, I need to find James. So, if he is in there I need you to send him out.
Officer: Is the door [unlocked or locked]?
Officer: Is the door [unlocked or locked]? Do you know?
Ms. Dahl: [No or I don't know] he is coming. It just takes him a minute to get up.
Officer: Hey Ben, how are you?
Ben: Good, how about you?
Officer: I'm not too bad. Hey man, I'm here for James. Where is he at?
Ben: James is not here.
Officer: Okay, do you mind if I look?
Inaudible
Officer: Appreciate it. Who else is in here with you?
Ben: Just my boy.
Officer: Where did you see James last?
Ben: Um, yesterday in a [band or van].
Officer: In a [band or van]?
Ben: Yes, sir.
Officer: Can I move past you real quick. I just want to check that real fast.
Inaudible
Officer: What have you got in there? James can you do me a favor and come out here real quick? I've got some questions for you, man.

State's Response to Defendant's Motion to Suppress, Exhibit A at 8:17 – 10:10.

Later in the audio Officer Hoeksema states, "the issue is that you allowed me into your room. I went into your closet back there and I found paraphernalia, which I recognize to be used for methamphetamines." State's Response to Defendant's Motion to Suppress, Exhibit A at 11:31. In his probable cause affidavit, Hoeksema states that while searching for James, he observed in plain view a glass pipe and a white crystal substance that was neatly divided into row along with multiple bundles of U.S. currency on a large mirror.

(R., pp.64-67 (ellipses in first paragraph added, otherwise verbatim (including capitalization, punctuation, brackets, ellipses and citations)).)

In support of his motion to suppress, Dahl argued the eight-year-old child who allowed Officer Hoeksema into Dahl's home had neither actual nor apparent authority to consent and, as such, Officer Hoeksema's warrantless entry was unlawful. (R., pp.33-42.) Dahl also argued that, but for the unlawful entry, the evidence against him would not have been discovered. (R., p.41.) The district court denied Dahl's suppression motion. (R., pp.64-75.) The court agreed with Dahl "that it was not reasonable for the officers to believe the child had actual authority to grant them permission to enter the home" or "that such consent was voluntary,"

and the court concluded, generally, "that an eight (8) year old does not have authority to consent to a search or entry of the home." (R., p.72.) The court declined to suppress the evidence Officer Hoeksema discovered in Dahl's bedroom, however, because Dahl "failed to establish that but for the initial invalid entry the seizure [of the evidence] would not have occurred." (R., p.74.) Specifically, the court ruled that "[e]ven though the first consent was invalid, the evidence establishe[d] the two other valid consents [given first by Dahl's mother and then by Dahl, himself] independently justified the initial warrantless search." (R., p.74.)

Dahl entered conditional guilty pleas to possession of methamphetamine with intent to deliver and possession of heroin, preserving the right to challenge the denial of his suppression motion on appeal. (R., pp.84-95, 99-100.) In exchange for Dahl's pleas, the state dismissed the remaining charges as well as a misdemeanor possession of drug paraphernalia charge filed in a related case. (R., pp.10, 122.) The district court imposed an aggregate unified sentence of eight years, with two years fixed, but suspended the sentence and placed Dahl on probation for four years. (R., pp.129-32.) Dahl timely appealed from the judgment. (R., pp.133-36,

144-48.)[1]

ISSUES

Dahl states the issue on appeal as:

Did the district court err in denying Mr. Dahl's motion to suppress?

(Appellant's brief, p.7.)

The state rephrases the issues as:

1. Should the Court dismiss Dahl's appeal in Docket No. 44004 (Canyon County Case No. CR-2015-9825), because Dahl does not raise any appellate issue in relation to that case?
2. Has Dahl failed to show the district court erred in denying his motion to suppress? More specifically, has Dahl failed to show error in the district court's conclusion that the evidence Dahl sought to suppress was not subject to suppression because it was not the product or result of any unlawful police conduct?

[1] Dahl also filed a notice of appeal in the misdemeanor paraphernalia case, and the two cases were consolidated for appeal. (R., p.143.) Because Dahl does not raise any appellate issue related to the paraphernalia case, as explained in Section I, the state is seeking dismissal of Dahl's appeal in that case.

ARGUMENT

I. This Court Should Dismiss The Appeal In Docket No. 44004 Because Dahl Has Not Raised Any Appellate Issue In That Case

The appeal in Docket No. 44004 is from the district court's order dismissing a misdemeanor paraphernalia charge in Canyon County Case No. CR-2015-9825. (See R., pp.7, 10, 133.) However, because the paraphernalia charge was dismissed, "Dahl does not raise an issue in this appeal with respect to CR-2015-9825." (Appellant's brief, p.6 n.3.) Because Dahl has assigned no error to the order of dismissal in Docket No. 44004, the appeal in that case is effectively moot and should be dismissed. *State v. Barclay*, 149 Idaho 6, 8, 232 P.3d 327, 329 (2010) (quotations and citation omitted) ("An issue becomes moot if it does not present a real and substantial controversy that is capable of being concluded by judicial relief.").

II. Dahl Has Failed To Show Error In The Denial Of His Motion To Suppress

A. Introduction

Dahl challenges the denial of his motion to suppress, arguing as he did below that the drug evidence found in his room would not have been discovered but for Officer Hoeksema's illegal entry into his home (Appellant's brief, pp.9-10), and that "the State did not meet its burden of establishing the consent given by Mr. Dahl and/or his mother was sufficiently attenuated from the illegal entry to

expunge the taint of the unlawful police conduct" (*Id.*, pp.10-12). He also argues that, "even if the consent given by Mr. Dahl and/or his mother was sufficiently attenuated from the illegal entry, the state did not meet its burden of establishing by a preponderance of the evidence the validity of that consent." (*Id.*, pp.12-14 (capitalization altered, underlining omitted).) Dahl's arguments fail.

Even assuming Officer Hoeksema's initial entry into the home based on the consent given by an eight-year-old child was unlawful, the district court correctly applied the law to the facts when it concluded that the drug evidence found in Dahl's room was not the product or result of that initial unlawful entry but was instead independently justified by Dahl's and his mother's subsequently given consents. Although Dahl argued below neither he nor his mother gave any independent consent, he did so only after the hearing on his motion to suppress, and he never argued the consents were not voluntary. Because Dahl failed to timely raise the issue at a point where the state could respond to it with the presentation of relevant evidence, the issue was not preserved and this Court should decline to consider it. If the Court does reach the merits of the issue, the existing record supports the district court's finding that the consents given by Dahl and his mother were "valid." (R., p.74.) Dahl has failed to show the district court erred in denying his motion to suppress.

B. Standard Of Review

"The standard of review of a suppression motion is bifurcated. When a decision on a motion to suppress is challenged, [the appellate court] accept[s] the trial court's findings of fact that are supported by substantial evidence, but [the court] freely review[s] the application of constitutional principles to the facts as found." *State v. Kapelle*, 158 Idaho 121, 124, 344 P.3d 901, 904 (Ct. App. 2014) (citing *State v. Atkinson*, 128 Idaho 559, 561, 916 P.2d 1284, 1286 (Ct. App. 1996)). "At a suppression hearing, the power to assess the credibility of witnesses, resolve factual conflicts, weigh evidence, and draw factual inferences is vested in the trial court." *Id.* (citing *State v. Valdez-Molina*, 127 Idaho 102, 106, 897 P.2d 993, 997 (1995); *State v. Schevers*, 132 Idaho 786, 789, 979 P.2d 659, 662 (Ct. App. 1999)).

C. Dahl Has Failed To Show Error In The District Court's Conclusion That The Drug Evidence Found In Dahl's Bedroom Was Not Subject To Suppression Because It Was Not The Product Or Result Of Any Unlawful Police Conduct

The Fourth Amendment of the United States Constitution provides: "The right of the people to be secure in their persons, houses, papers, and effects, against unreasonable searches and seizures, shall not be violated." U.S. Const. amend. IV. "Although a warrantless entry or search of a residence is generally illegal and violative of the Fourth Amendment, such an entry or search may be rendered

reasonable by an individual's consent." *State v. Kapelle*, 158 Idaho 121, 128, 344 P.3d 901, 908 (Ct. App. 2014) (citing *State v. Johnson*, 110 Idaho 516, 522, 716 P.2d 1288, 1294 (1986); *State v. Abeyta*, 131 Idaho 704, 707, 963 P.2d 387, 390 (Ct. App. 1998)).

In this case, Officer Hoeksema entered Dahl's home after receiving permission to do so from an eight-year-old child. (R., p.64.) Relying on case law from another state and on Idaho cases and statutes it deemed instructive, the district court concluded, as a matter of law, both that the child did not have actual authority to consent to the entry of the home and that it was not reasonable for the officers to believe she had authority to consent or that her consent was voluntary. (R., pp.70-72.) The court nevertheless declined to suppress the evidence Officer Hoeksema discovered while in the home because Dahl failed to meet his burden of establishing the evidence would not have been found "but for the initial invalid entry." (R., pp.72-74.) Contrary to Dahl's assertions on appeal, correct application of the law to the facts supports the district court's ruling.

As explained by the Idaho Court of Appeals in *Kapelle, supra*:

> The exclusionary rule calls for suppression of evidence that is gained through unconstitutional governmental activity. This prohibition against the use of derivative evidence extends to the indirect as well as the direct fruit of the government's misconduct. Nevertheless, suppression is not justified unless the challenged evidence is in some sense the product of illegal governmental activity. That is, evidence

> will not be excluded as fruit unless the illegality is at least the but for cause of the discovery of the evidence.
> Where a defendant has moved to suppress evidence allegedly gained through unconstitutional police conduct, the state bears the ultimate burden of persuasion to prove that the challenged evidence is untainted, but the defendant bears an initial burden of going forward with evidence to show a factual nexus between the illegality and the state's acquisition of the evidence. This requires a prima facie showing that the evidence sought to be suppressed would not have come to light but for the government's unconstitutional conduct. By expressing the query as a "but for" test, we do not imply that a defendant bears the burden to prove a negative – that the state would not or could not have discovered the evidence on any set of hypothetical circumstances that could have arisen absent the illegal search. Rather, the defendant need only show that, on the events that did take place, the discovery of the evidence was a product or result of the unlawful police conduct.

158 Idaho at 127, 344 P.3d at 907 (brackets, quotations and internal citations omitted; paragraph break added for ease of readability).

Applying the foregoing standards to the facts before it in *Kapelle*, the Court of Appeals affirmed the denial of Kapelle's suppression motion because Kapelle failed to meet his burden of establishing the evidence he sought to suppress was the product of any unconstitutional police conduct. 158 Idaho at 128, 344 P.3d at 908. In that case, two officers searching for a "wanted felon" approached Kapelle's trailer home on foot from the bottom of the driveway that led to the trailer. *Id.* at 123, 344 P.3d at 903. Although neither officer was in uniform, both "had their badges hanging visibly on their chests" and both had "their guns drawn." *Id.* Upon

hearing loud music and voices coming from inside the trailer, "[o]ne of the officers walked around to the rear [of the trailer] in order to prevent any escape from a back window." *Id.* Kapelle saw "the officer in his backyard and came out his front door to investigate," at which point the officer who was "in front of the trailer informed Kapelle they were with the sheriff's office and inquired whether the wanted suspect was there." *Id.* Overhearing the conversation, the officer who was in the backyard walked back to the front of the trailer. *Id.* Kapelle then told both officers that he knew the suspect but that the suspect was not there. *Id.* After advising Kapelle that they could not leave until they confirmed the suspect was not there, the officers asked Kapelle's permission to enter the trailer to look for the suspect, and Kapelle agreed. *Id.* "Once inside, the officers immediately smelled the odor of raw marijuana." *Id.* The officers thereafter searched the trailer pursuant to Kapelle's consent and found evidence of marijuana manufacturing, as well as an unlawfully possessed firearm. *Id.* In the prosecution that followed, Kapelle moved to suppress the evidence as being the product of an unlawful search, but the district court denied the motion. *Id.*

On appeal, Kapelle argued the evidence against him should have been suppressed because "the officers entered the curtilage of his property without any legitimate societal purpose and, thus, conducted an unlawful warrantless search."

Id. at 124, 344 P.3d at 904. The Court of Appeals agreed, in part, holding that while the "initial entry onto Kapelle's property for purposes of conducting a criminal investigation was constitutionally reasonable," the "officer's conduct in approaching the home with his gun drawn, circling around back of the trailer and stating he would not leave until able to search the trailer … constituted a warrantless search in violation of the Fourth Amendment." *Id.* at 126-27, 344 P.3d at 906-07. The Court rejected Kapelle's argument that the illegal search constituted a basis for suppression, however, because Kapelle failed to carry his threshold burden of demonstrating the evidence against him would not have come to light but for the officer's unconstitutional conduct. *Id.* at 127-28, 344 P.3d at 907-08. Specifically, the Court reasoned:

> Here, the officer's illegal search [his entry into Kapelle's backyard] did not yield any incriminating evidence, nor any evidence which would have affected Kapelle's decision to grant consent to enter and search his trailer. Furthermore, by the time Kapelle consented to the entry, this officer had returned to the front of the trailer. Thus, the illegal search had ended and the officer was again in a place he was lawfully entitled to be.
> Moreover, while the officers approached Kapelle with their guns drawn, the officers did not aim their guns at Kapelle and kept them pointed toward the ground. Given the circumstances of the encounter (search for a dangerous suspect), it was reasonable for the officers to take precautions. Furthermore, the officers' conversation with Kapelle appeared to be nonaccusatory and cordial in nature. When requesting consent to search Kapelle's home, an officer inquired, "Brother, you know we can't leave unless we know he is here or not. Can we just make sure he is not hiding on the crapper or just sitting on the couch right there behind you." The officers did not threaten Kapelle or create

> an overbearing environment. Therefore, we hold Kapelle has failed to demonstrate his consent to enter and search, and the resulting evidence, was the direct or indirect result of the illegal search.

Id. at 128, 344 P.3d at 908. Because Kapelle failed to show any causal connection between the initial illegal search and the evidence sought to be suppressed, exclusion of the evidence was not warranted. *Id.*; *see also State v. McBaine*, 144 Idaho 130, 157 P.3d 1101 (Ct. App. 2007) (upholding denial of suppression motion where defendant failed to demonstrate a causal link between officer's initial unlawful entry into home and defendant's subsequent consent to search), cited in *Kapelle*, 158 Idaho at 127-28, 344 P.3d at 907-908.

In this case, even assuming that Officer Hoeksema's initial entry into Dahl's home pursuant to the permission of an eight-year-old child was unlawful, the district court correctly concluded suppression of the drug evidence the officer subsequently found in Dahl's room was not warranted because Dahl, like Kapelle, failed to carry his burden of demonstrating that that evidence would not have been discovered but for the officer's initial unlawful entry. Officer Hoeksema testified that, after being granted entry by the child, he "walked into the main entryway and stood there for the remainder of the time until [Dahl's] mother, Eleanor Dahl, came down" the stairs. (Tr., p.6, L.21 – p.9, L.15.) While in the entryway, the officer "might have looked over to see" what was in an adjacent hallway but, as in

Kapelle, there is no indication that the officer observed any incriminating evidence, or any evidence at all, that would have affected Mrs. Dahl's decision to consent when the officer asked her permission to go upstairs. (Tr., p.9, Ls.2-11.) Although Officer Hoeksema was still in the entryway when Mrs. Dahl gave her consent (see Tr., p.9, Ls.2-15, p.15, Ls.7-24), there is nothing in the record to suggest that Mrs. Dahl, or even a reasonable person in her position, would have been compelled by Officer Hoeksema's mere presence in the entryway to allow him further access to the house. There is no indication in the record that Officer Hoeksema ever drew his service weapon, and a review of the audio recording of the encounter demonstrates that the officer's demeanor was in no way overbearing or threatening. (Exhibit A at 07:24-8:25.) Like the officers in *Kapelle*, Officer Hoeksema and his partner were looking for a wanted felon, and Officer Hoeksema asked Mrs. Dahl, in a cordial and nonaccusatory tone, "Do you mind if we go up there [to Dahl's room] and at least clear to make sure that he is not here?" (R., p.66; Exhibit A at 07:24-08:25.) Given all of these circumstances – including the facts that Officer Hoeksema limited his initial entry to the main entryway, did not observe or search for any incriminating evidence while there, and did not otherwise create a threatening or overbearing environment – Dahl has failed to demonstrate that Mrs. Dahl's consent

to allow Officer Hoeksema to accompany her upstairs to Dahl's bedroom was either a direct or indirect result of the initial unlawful entry.

Dahl has likewise failed to show his own consent to search resulted, either directly or indirectly, from Officer Hoeksema's initial unlawful entry. By the time the officer asked Dahl for consent to enter and search his bedroom, Mrs. Dahl had already given the officer her express consent to accompany her upstairs and had facilitated the officer's contact with Dahl by knocking on Dahl's door and telling him, "[T]he police would like to see your room, please. […] They just want to make sure James isn't here." (R., pp.66-67 (bracketed ellipses in original); Exhibit A at 07:24-08:43.) After Dahl opened his bedroom door, Officer Hoeksema exchanged pleasantries with him, told him, "I'm here for James [the wanted felon]," and asked, "Where is he [James] at?" (R., p.67; Exhibit A at 09:19-09:24.) When Dahl replied, "James is not here," the officer asked, "Okay, do you mind if I look," at which point Dahl permitted the officer to enter his room. (R, p.67; Exhibit A at 09:24-09:30.) There is no indication on this record that Dahl was even aware the officer had initially entered the home pursuant to the consent of a child, much less that the initial unlawful entry had any effect on Dahl's decision to allow the officer access to his room. Because the drug evidence the officer subsequently discovered in Dahl's room was the result of Dahl's independent consent, and not

the result of the officer's initial unlawful entry, the district court correctly denied Dahl's motion to suppress.

Dahl argues he met his burden of showing "a factual nexus between the illegal entry and the discovery of evidence in [his] room," because his "room would not, and could not, have been searched if the officer was not present in his house." (Appellant's brief, pp.9-10.) Dahl's argument is unavailing because he cannot show the requisite factual nexus between the unlawful entry and the discovery of the evidence sought to be suppressed merely by pointing out that there was an unlawful entry. Rather, because Dahl and his mother both consented to the officer's presence in the home after the initial unlawful entry, it was Dahl's burden to show that neither he nor his mother would have granted consent but for the initial illegality. Dahl has never made such a claim, much less presented any evidence to support it. Because the fact of the unlawful entry is not itself sufficient to demonstrate "a factual nexus between the illegality and the state's acquisition of the evidence," the district court correctly concluded Dahl failed to meet his burden of "establish[ing] that but for the initial invalid entry the seizure [of the drug evidence] would not have occurred" (R., p.74).

Although Dahl does not specifically argue he and his mother would not have consented "but for" Officer Hoeksema's initial unlawful entry, he does claim the

consents he and his mother gave were not "sufficiently attenuated from the illegal entry to expunge the taint of the unlawful police conduct." (Appellant's brief, pp.10-12.) This argument is irrelevant. As explained by the Court of Appeals in *Kapelle, supra*, "attenuation analysis is only appropriate where, as a threshold matter, courts determine that the challenged evidence is in some sense the product of illegal governmental activity." *Kapelle*, 158 Idaho at 128, 344 P.3d at 908 (internal quotations omitted) (citing *New York v. Harris*, 495 U.S. 14, 19 (1990); *United States v. Crews*, 445 U.S. 463, 471 (1980)). Because, for the reasons stated above, Dahl failed to carry his burden of showing the drug evidence he sought to suppress was a product of the officer's unlawful entry, "there is no occasion for application of the attenuation doctrine." *Kapelle*, 158 Idaho at 128, 344 P.3d at 908.

Even if attenuation analysis were appropriate, correct application of the law to the facts established in relation to Dahl's suppression motion shows Officer Hoeksema's discovery of the drug evidence in Dahl's bedroom was sufficiently attenuated from his initial unlawful entry to expunge the taint of the initial illegality. The Idaho Supreme Court has adopted a three-factor test to determine whether unlawful conduct has been adequately attenuated. *See State v. Page*, 140 Idaho 841, 846, 103 P.3d 454, 459 (2004). The factors to be considered are: "(1)

the elapsed time between the misconduct and the acquisition of the evidence, (2) the occurrence of intervening circumstances, and (3) the flagrancy and purpose of the improper law enforcement action." *Id.* (citation omitted). Not all of these factors must be resolved in favor of the state before evidence will be deemed not subject to the exclusionary rule. *State v. Schrecengost*, 134 Idaho 547, 549, 6 P.3d 403, 405 (Ct. App. 2000). "The test only requires a balancing of the relative weights of all the factors, viewed together, in order to determine if the police exploited an illegality to discover evidence." *Id.* (citing *United States v. Seidman*, 156 F.3d 542, 549-550 (4th Cir. 1998)).

Here there was no exploitation of the alleged illegality. It is undisputed that approximately five minutes elapsed between Officer Hoeksema's initial entry into Dahl's home pursuant to the consent of the eight-year-old child and his entry into Dahl's room pursuant to Dahl's consent. Although the district court subsequently found the officer should have known an eight-year-old could not grant the officer consent to enter Dahl's home, suppression is not warranted because there is no indication the officer acted in flagrant violation of the law or for any improper purpose. Indeed, as the district court correctly observed in its memorandum decision denying Dahl's motion to suppress, "Idaho's appellate courts have not squarely addressed whether a child may legally consent to a search of the home,"

nor are there any Idaho statutes "directly on point." (R., pp.70-71.) Even assuming the district court was correct in its post hoc determination that the child could not legally consent, Officer Hoeksema's act of relying on the child's consent as a basis to enter the home – when nothing in Idaho law at the time plainly prohibited such reliance – in no way demonstrates any intent by the officer to violate Dahl's rights.

Nor is there any evidence that, in entering the home, Officer Hoeksema acted with some other untoward purpose. As set forth in more detail above, the officer was at Dahl's home to look for a wanted felon. (R., p.64.) When the child let the officer into Dahl's home, the officer restricted his movements to the entryway and waited for Mrs. Dahl to come downstairs. (Tr., p.6, L.21 – p.9, L.11.) The officer did not look for or observe any incriminating evidence while in the entryway, and he did not otherwise exploit his presence inside the threshold of Dahl's home to obtain information or evidence to which he would not otherwise have been privy. (*Id.*)

Likewise, Officer Hoeksema did not learn of the drug evidence in Dahl's room by being present in the entryway, but instead by the intervening circumstances of Dahl's and his mother's consents. Contrary to Dahl's assertions (Appellant's brief, pp.11-12), there is no indication that those consents were inextricably intertwined with the officer's initial unlawful entry; instead, for the

reasons already set forth above (including the fact that Dahl was not even aware of the circumstances of the officer's initial entry into the home), the record supports the district court's determination that the consents were independent of the officer's initial entry and would have been granted even had the eight-year-old child not initially permitted the officer in Dahl's home. Because the record shows the officer did not discover the drug evidence as a result of any exploitation of his initial unlawful entry, Dahl has failed to show the district court erred by not suppressing the evidence as the fruit of the alleged illegality.

D. Dahl's Appellate Challenge To The Voluntariness Of His And His Mother's Consents Is Not Preserved Because Dahl Failed To Assert Any Such Challenge Below

As an alternative basis for suppression, Dahl argues on appeal the state failed to meet its burden of establishing the voluntariness of his and his mother's consents. (Appellant's brief, pp.12-14.) This Court should decline to consider Dahl's appellate claim because Dahl never raised an alleged lack of voluntariness of his and his mother's consents as a basis for suppression below.

On appeal from an order denying a motion to suppress, a defendant "may not allege to this Court that the district court's decision was in error based on an argument that was never presented to the district court for consideration." *State v. Armstrong*, 158 Idaho 364, 368, 347 P.3d 1025, 1029 (2015). "Even when a

defendant mentions the general basis for a motion to suppress, his or her arguments on appeal are limited by what was argued to the trial court." *Id.* (citations omitted). In this case, Dahl moved to suppress the drug evidence against him based solely on his assertion that the evidence was the fruit of an unlawful entry into his home. (R., pp.33, 35-41.) Dahl did argue, at the conclusion of the suppression hearing and in a "Notice of Supplemental Authority" filed one day after the hearing, that neither he nor his mother gave any consent. (Tr., p.21, Ls.19-21, p.22, L.24 – p.23, L.1; R., pp.56-57.) But Dahl never challenged the voluntariness of his or his mother's consents. (See generally R., pp.33, 35-41, 56-57; Tr.) Moreover, the state specifically objected to Dahl's post-hearing assertion that neither Dahl nor his mother gave consent, noting (1) the "sole argument" Dahl made in his brief in support of his motion to suppress "was that the initial entry was unconstitutional because the young female who answered the door could not have given actual consent," and (2) by failing to raise the issue before the suppression hearing, Dahl deprived the state of notice and an opportunity (or even an incentive) to present evidence to prove that Dahl and his mother consented. (R., pp.61-63; see also Tr., p.24, L.24 – p.25, L.21.) Although the district court ultimately found that "both Ms. Dahl and Mr. Dahl consented" to the search that led to the discovery of the drug evidence and that those consents were "valid," that determination appears to

have been made only in relation to the court's finding that Dahl failed to carry his burden of establishing a causal connection between the initial unlawful entry and the discovery of the drug evidence, not in response to any contrary claim by Dahl that neither his nor his mother's consents were voluntary. (See generally R., pp.72-74.) Because Dahl never challenged the voluntariness of his or his mother's consents below, his appellate challenge to the voluntariness of those consents should not be considered. *See Armstrong*, *supra*.

E. Even If This Court Considers Dahl's Appellate Challenge To The Voluntariness Of His And His Mother's Consents, The Existing Record Supports The District Court's Finding That Those Consents Were "Valid"

A warrantless search conducted pursuant to valid consent does not violate the Fourth Amendment. *Schneckloth v. Bustamonte*, 412 U.S. 218, 219 (1973) (citations omitted); *State v. Varie*, 135 Idaho 848, 852, 26 P.3d 31, 35 (2001). Consent is valid if it is free and voluntary. *Schneckloth*, 412 U.S. at 225-26 (citations omitted). The voluntariness of an individual's consent is a question of fact to be determined based upon the totality of the circumstances. *Varie*, 135 Idaho at 852, 26 P.3d at 35 (citing *Schneckloth*, 412 U.S. at 248-49). In order to be valid, consent cannot be the result of duress or coercion, either direct or implied. *Schneckloth*, 412 U.S. at 248. The mere presence of officers asking for consent to search is not sufficient, as a matter of law, to constitute improper police duress or

coercion. *See United States v. Watson*, 423 U.S. 411 (1976). Instead, the court must consider all of the surrounding circumstances and find consent involuntary only if "coerced by threats or force, or granted only in submission to a claim of lawful authority …." *State v. Hoisington*, 104 Idaho 153, 158, 657 P.2d 17, 22 (1983) (emphasis omitted) (quoting *Schneckloth*, 412 U.S. at 233).

Even if this Court considers Dahl's unpreserved challenge to the voluntariness of his and his mother's consents, a review of the existing record in light of the foregoing legal standards shows those consents were voluntary. As evidenced by the audio recording of the encounter, Officer Hoeksema's interactions with Dahl and his mother were cordial and nonaccusatory in nature. (See generally Exhibit A.) He introduced himself to Mrs. Dahl, explained he was looking for a wanted felon, and asked Mrs. Dahl, in a non-threatening manner, if he could go upstairs to Dahl's room to look for the suspect. (Exhibit A at 07:24-08:25; R., p.66.) Although the officer told Mrs. Dahl she and others in the home "could be arrested for felony harboring" if the suspect was there, that statement was not in and of itself coercive. *See, e.g. State v. LeClercq*, 149 Idaho 905, 911, 243 P.3d at 1093, 1099 (Ct. App. 2010) (citing *State v. Garcia*, 143 Idaho 774, 779-80, 152 P.3d 645, 650-51 (Ct. App. 2006)) (informing suspect "officer intends to do something that the officer is legally authorized to do under

the circumstances … does not amount to coercion"). The officer never threatened Mrs. Dahl or displayed any show of force that would have compelled Mrs. Dahl to permit the officer to accompany her upstairs to Dahl's room. (See generally Exhibit A.)

Nor is there any indication that Dahl's consent to search was the product of any police coercion. After Dahl opened his bedroom door in response to his mother's and Officer Hoeksema's request that he do so, Officer Hoeksema exchanged pleasantries with Dahl and told him why he was there. (Exhibit A at 09:19-09:24; R., p.67.) Like his encounter with Mrs. Dahl, the officer's encounter with Dahl was pleasant, nonaccusatory and non-threatening. (See generally Exhibit A.) The officer explained to Dahl why he was there and asked Dahl if he "mind[ed]" if the officer looked in his bedroom. (Exhibit A at 09:24-09:42; R., p.67.) Although Dahl's response is not audible on the audio recording, Officer Hoeksema testified that Dahl "shook his head and motioned for [the officer] to walk inside." (Tr., p.18, Ls.19-22.) Viewed in their totality, the foregoing circumstances show that Dahl's act of doing so was voluntary and not the result of any police duress or coercion.

In arguing that neither his nor his mother's consents were voluntary, Dahl fails to point to any evidence of police coercion. He argues the "atmosphere" in

which he and his mother consented was "coercive" because it was early in the morning (Appellant's brief, p.13), but he has failed to cite any authority for the proposition that the earliness of the hour – in this case, 8:36 a.m. (see R., p.65) – transforms an otherwise cordial police encounter into a coercive one. He also argues the fact that he did not audibly respond to the officer's request to enter his bedroom, but instead motioned for the officer to walk inside, shows only that he acquiesced to the officer's show of authority. (Appellant's brief, pp.12-13.) This argument fails because the officer did not show any authority or display any force; he simply asked Dahl if he "mind[ed]" if he looked in his bedroom. (R., p.67.) That Dahl permitted him to do so does not transform the officer's request into a show of authority. Finally, Dahl contends Mrs. Dahl's consent was not voluntary because the state failed to show she had actual or apparent authority to consent to a search of Dahl's bedroom. (Appellant's brief, p.13.) This argument fails for at least two reasons. First, Dahl never made this argument below and, as such, it is not preserved. *Armstrong*, 158 Idaho at 368, 347 P.3d at 1029. Second, it was Dahl, not his mother, who permitted the officer to enter Dahl's bedroom. (R., p.67.) Because the officer entered Dahl's bedroom pursuant to Dahl's consent, Mrs. Dahl's authority or lack thereof to also consent to the search of Dahl's bedroom is irrelevant.

The district court correctly concluded that Dahl failed to carry his burden of showing any causal connection between the officer's initial unlawful entry and the discovery of the drug evidence in Dahl's bedroom. The court also correctly concluded the evidence was discovered pursuant to Dahl's and his mother's valid consents. Dahl has failed to show any basis for reversal of the district court's order denying his motion to suppress.

CONCLUSION

The state respectfully requests that this Court affirm Dahl's conviction and sentence and the district court's order denying Dahl's motion to suppress.

DATED this 4th day of January, 2017.

This brief contains 6790 words and complies with the word-count limit of I.A.R. 34(b).

/s/ *LORI A. FLEMING*
LORI A. FLEMING
Deputy Attorney General

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that I have this 4th day of January, 2017, served a true and correct copy of the foregoing BRIEF OF RESPONDENT by emailing an electronic copy to:

ANDREA W. REYNOLDS
DEPUTY STATE APPELLATE PUBLIC DEFENDER
briefs@sapd.state.id.us

/s/ *LORI A. FLEMING*
LORI A. FLEMING
Deputy Attorney General